MALL OF AMERICA® PRIVACY POLICY

Last Modified: March 3, 2022

MOAC Mall Holdings LLC and MOA Entertainment Company LLC ("**MOA**" shall mean any of the foregoing entities), including any entity that controls MOA®, is controlled by MOA or is under common control with MOA (each an "**Affiliate**"), are committed to protecting your privacy and demonstrating care and respect with regard to our treatment of any Personal Information that we may obtain from you. This privacy policy (the "**Privacy Policy**") is designed to provide transparency into our privacy practices and principles, in a format that our guests can navigate, read and understand. We are dedicated to treating your Personal Information with care and respect.

BY SUBMITTING YOUR PERSONAL INFORMATION TO US, YOU ARE CONSENTING TO THE PROCESSING OF YOUR PERSONAL INFORMATION IN THE UNITED STATES OR IN ANY OTHER COUNTRY IN THE WORLD AND TO OUR USE OF YOUR PERSONAL INFORMATION AS SET FORTH IN THIS PRIVACY POLICY. IF YOU ARE SUBMITTING PERSONAL INFORMATION OF THIRD PARTIES TO US, YOU WARRANT AND REPRESENT YOU HAVE THEIR CONSENT TO PROVIDE THEIR PERSONAL INFORMATION TO US AND WILL HOLD US HARMLESS FROM AND AGAINST CLAIMS BY SUCH INDIVIDUALS RELATING TO OUR PROCESSING AND USE OF SUCH PERSONAL INFORMATION WITHIN THE TERMS OF THIS PRIVACY POLICY.

This Privacy Policy describes the treatment of information provided to or collected on the mallofamerica.com website, the nicku.local website, the theatresmoa.com website and other websites where this Privacy Policy (or the Children's Online Privacy Policy) is posted, and in instances as otherwise indicated by MOA (each a "**Site**"). It also explains the treatment of information provided or collected on software applications (each an "**App**") we make available on third-party sites or platforms if disclosed to you in connection with use of the application.

When you use or access the Sites or Apps, or use a service provided by MOA incorporating this Privacy Policy, you agree to the terms of this Privacy Policy. Your visit to the Sites and any dispute over privacy is subject to the Terms of Use, including limitations on damages and application of the law of the State of Minnesota.

Use of the Sites and Apps is strictly voluntary. You may not use the Sites or Apps if you do not agree to the Privacy Policy. This Privacy Policy contains the following sections:

1. Definitions
2. Types of Information MOA Collects
3. Children's Online Privacy Protection
4. How MOA Uses Your Information
5. Use of Your Information by MOA
6. Online Tracking and Advertising
7. Sharing Your Information with Other Companies
8. Other Sites and Functionalities
9. Your Controls and Choices
10. Data Security
11. Changes to Privacy Policy
12. Comments and Questions

Definitions

For purposes of this Privacy Policy:

- "**Aggregate Information**" means information about groups or categories of data, which does not identify and cannot reasonably be used to identify an individual.
- "**Anonymous Information**" means information that does not directly or indirectly identify, and cannot reasonably be used to identify, an individual.
- "**Cookies**" means anonymous, unique identifiers that a website places on the hard drive of your computer or mobile device when you visit the website. Cookies may involve the transmission of information from us to you and from you directly to us, to another party on our behalf, or to another party in accordance with its privacy policy.
- "**Flash Cookies**" means local shared objects that are used to store personalized information based on visits to websites.
- "**Personal Information**" means information that identifies (whether directly or indirectly) a particular individual, such as the individual's name, postal address, email address or telephone number. When Anonymous Information is directly or indirectly associated with Personal Information, this Anonymous Information also is treated as Personal Information.
- "**Location**" means the premises of Mall of America.
- "**Web Beacons**" means small pieces of data that are embedded in images on the pages of Sites. Web beacons may involve the transmission of information directly to us, to another party on our behalf, or to another party in accordance with its privacy policy.

2. **Types of Information MOA Collects**

We collect two basic types of information – Personal Information and Anonymous Information. We may use personal and anonymous information to create a third type of information – Aggregate Information.

Personal Information. There are several places where MOA gives you an opportunity to provide MOA your Personal Information. MOA may ask you to provide Personal Information when you engage in certain activities on a Site or an App, such as: utilizing the MOA WiFi services; signing up for the Mall of America newsletter; participating in social media activities involving third-party providers such as Facebook, Twitter, YouTube, Instagram, Snapchat, Pinterest, Swarm, or Yelp, whether at this Site or the social media websites; filling out a survey; sending feedback; downloading, installing or using an App; registering for sweepstakes or contests; or using a cell phone send text messages to or call MOA.

If you choose to share any Personal Information with MOA, you will see that the amount and type of Personal Information MOA requests depends on how you use the corresponding Site. It is completely optional for you to engage in these activities. Depending upon the activity, the information MOA asks you to provide will be identified as mandatory or voluntary. If you do not provide the mandatory data with respect to a particular activity, you will not be able to engage in that activity.

While you can generally browse a Site without informing MOA about who you are or revealing Personal Information about yourself, MOA is still able to determine your IP address, which will reveal your location to MOA. MOA may use your IP address, together with other Personal Information that you may provide to us, such as your email address, to communicate with you directly about products and services that MOA believes may be of interest based on your activity on a Site.

Anonymous Information. In general, you can browse a Site without telling MOA who you are or revealing any Personal Information about yourself. MOA, however, collects your computer's and/or mobile device's IP address, which you necessarily disclose when you visit a Site or download or use an App so that data (such as the web pages you request) can be sent to your computer or mobile device. The Sites and/or Apps may utilize Cookies. MOA may use Cookie data to recognize you when you visit a Site or use an App in the future, to troubleshoot how a Site or an App operates, and for internal analysis of how people use a Site or an App. Should you decide not to accept Cookies from a Site or an App, you will limit the functionality MOA can provide you.

Aggregate Information. We may occasionally use Google Analytics and/or other third-party data analytics tools to (i) monitor traffic on our Sites or Apps, (ii) use of Mall of America's WiFi service, and (iii) use of Mall of America App and other software applications. Such tools help us to provide the kind of user-friendly, up-to-date information that online users expect to find. Personal Information is not monitored or collected through this process.

Participation in Activities. When you engage in certain activities on a Site or an App, such as by registering or logging in as a user of an App or sending MOA a message using a Site, MOA may ask you to provide Personal Information and other information. In order to engage in such activities, you will be required to provide information that allows MOA know the specifics of who you are or where you are, and may include, without limitation, your name, email address, and whether you are a guest at the Location. If you choose to share any Personal Information with MOA, you will see that the amount and type of Personal Information MOA requests depends on how you use a Site or an App. It is optional for you to engage in these activities. Depending upon the activity, some of the information MOA asks you to provide is identified as mandatory and some is voluntary. If you do not provide the mandatory data with respect to a particular activity, you will not be able to engage in that activity.

Examples. Examples of the type of information MOA and Provider may collect and store included are: first and last name; age and birthday; gender; mailing and email addresses, including zip code; and telephone number(s); device profile created and modified dates, shared device preferences, lists of social networks associated with a user, Facebook ID, Google Plus ID, Twitter Profile URL, LinkedIn Plus ID, Cookies, native device and applications unique identifiers (UIDs), custom identifiers, an application identifiers.

3. **Children's Online Privacy Protection**

We recognize the need to provide further privacy protections with respect to Personal Information we may collect from children under 13 years of age ("**Children**") on Sites and Apps and in certain other instances. Some of the features on Sites and Apps are age-gated, which means that access and/or use by children is restricted or prohibited. We do not knowingly collect Personal Information from children under the age of 13 in connection with those features. Of course, MOA cannot prevent certain users, including children, from fraudulently representing their age in order to gain access to the Site or an App.

In the event MOA knowingly collects Personal Information from Children, MOA will take additional steps to protect Children's privacy, including:

- Notifying parents about our information practices with regard to Children, including the types of Personal Information we may collect from Children, the uses to which we may put that information, and whether and with whom we may share that information;
- In accordance with applicable law, obtaining consent from parents for the collection of Personal Information from their children, or for sending information about our products and services directly to their Children;
- Limiting our collection of Personal Information from Children to no more than is reasonably necessary to participate in an online activity; and
- Giving parents access or the ability to request access to Personal Information we have collected from their Children and the ability to request that the Personal Information be changed or deleted

For additional information about our practices regarding Personal Information from Children, please read our Children's Online Privacy Policy.

4. **How MOA Collects Your Information**

MOA may use your IP address to, among other things: (a) help diagnose problems with Sites or Apps, administer and improve Sites or Apps, and measure the use of Sites or Apps; (b) identify the type of web browsers used, the pages viewed, the web sites from which a visitor found Sites or Apps, and the search terms and search engines used to find the Site or Apps; and (c) gather other web analytics information relating to visitors' uses and navigations of Sites or Apps. This information does not identify you personally. On occasion MOA may aggregate this data with data from other users to track overall visitor traffic patterns and provide this Aggregate Information to vendors, business partners, or other parties to demonstrate the amount of interest in Sites and Apps, help MOA plan for technical infrastructure requirements, and for other reasons.

5. **Use of Your Information by MOA**

MOA may use your information, including Personal Information, for particular activities, including, without limitation: verifying your identity; customer service, customer relationship management (CRM), marketing and research; providing promotional and other information to you (such as through email marketing) on behalf of MOA, Affiliates of MOA and MOA business partners; responding to your requests; sending you text messages, push notifications, and other notifications through the App and/or your mobile device; contacting you regarding administrative notices; providing you with products and services that you request; communicating with you about your account; detecting, investigating and preventing activities that may violate our policies or be illegal. MOA may share your information with its Affiliates or business partners in connection with any of the foregoing activities. In addition, MOA's Affiliates may have access to your information to perform services on behalf of MOA or for use on their own behalf, such as in connection with the aforementioned activities. The privacy policies of MOA's Affiliates and business partners will govern how they use your Personal Information. While we try to be selective in working with third parties, we are not responsible for their use of your Personal Information.

If payments are involved, we must release your credit card information to credit card authorization service providers and associated banks to process your payment for purchases, returns or refunds.

From time to time, MOA may provide you the opportunity to participate in contests, sweepstakes, or surveys on our Sites or Apps. If you participate, we will request certain Personal Information from you. Participation in these surveys, sweepstakes or contests is completely voluntary and you therefore have a choice whether or not to disclose this information. The requested information may include name, address, date of birth and email address. We may share in this information with our service provider or co-sponsors for the contest, sweepstakes, or survey.

6. **Online Tracking and Advertising**

We, and certain service providers operating on our behalf, collect information about your activities on our Sites and Apps using tracking technologies such as Cookies, Flash Cookies and Web Beacons. We may also use cookies, pixel tags, action tags and similar tags to collect information. Cookies and tags allow us to compile statistics and other information about how you use our site. We may use this data for a variety of purposes, such as to:

- Analyze trends and improve the usability of Sites and Apps;
- Administer the site and gather broad demographic statistics;
- Share such non-personally identifiable information with third parties on an aggregate basis;
- Provide useful features to simplify your experience when you return to our Sites and Apps;
- Deliver relevant content based on your preferences, usage patterns and location;
- Monitor and evaluate the use and operation of our Sites and Apps; and
- Analyze traffic on our Sites and on the sites of third parties.

If you have a registration or other type of account with MOA, we may associate this tracking data with your account, in which case we will treat it as Personal Information. Specifically:

- We may use Cookies to bring together information we collect about you.
- We, our advertisers and third-party service providers, may use Flash Cookies to collect and store to store your preferences or display content based upon Sites that you view and to personalize your visit.
- We may use Web Beacons to bring together information we collect about you.

Service providers that collect tracking data on our behalf may provide an opportunity for you to choose not to be tracked online.

In addition, we may use third-party service providers to serve ads on our behalf across the Internet. They may collect anonymous information about your visits to our Site, and your interaction with our products and services. They may use cookies and other online tools such as pixel tags, action tags and similar tags to serve ads and personalize your Web shopping experience based on your prior visits to our Aite. They may also use information about your visits to our Site and other Sites to target advertisements for products and services. This anonymous information is collected through the use of a cookie. No personally identifiable information is collected or used in this process. These third-party service providers do not know your name, phone number, address, e-mail address, or any other personally identifying information about you. If you would like more information about this practice and to opt out of having this anonymous information used by our third party service providers, visit the Network Advertising Initiative's consumer opt-out page by clicking here.

7. **Sharing Your Information with Other Companies**

MOA retains the right to share (including by selling) Anonymous Information and Aggregate Information with third parties for any reason. We will generally not share your Personal Information outside of MOA or MOA Affiliates except in limited circumstances, including:

- MOA may share or otherwise disclose your Personal Information with third-parties service providers contracted by MOA or Affiliates to assist with internal MOA marketing efforts for MOA, Affiliates and/or MOA's business partners. Please note that once we share your Personal Information with another company, the information received by the other company becomes subject to the other company's privacy practices.
- MOA may use and share Aggregate Information with vendors, potential advertisers, business partners, or other third parties.
- MOA may disclose Personal Information in any of the following circumstances: (a) in response to a subpoena, search warrant, court order, or other legal process or request, or as may otherwise be required by applicable law or regulation; (b) to protect and defend MOA's rights or property or those of its Affiliates or business partners, or others; or (c) as MOA, in its sole discretion, believes is appropriate under exigent circumstances in response to a perceived threat to the personal safety, property, or rights of any person or organization.
- Since MOA's database is a business asset, in the event MOA is reorganized or becomes part of another organization, you consent to the sale, assignment, or transfer of your Personal Information to a successor that acquires substantially all of the business assets of MOA, or to an MOA Affiliate, as applicable.

8. **Other Sites**

A Site or App may contain links to other websites. Additionally, other web sites may contain links to a Site. We do not review or monitor the websites linked to a Site and are not responsible for the contents or privacy policies related to any other websites. If you visit one of these other websites, you may want to review the privacy policy on that website. Where a Site or App contains a link to another website owned and/or operated by us, such website use may be subject to different and additional terms of service and privacy policy terms and conditions.

We may have functionality on our Site that is provided, in whole or in part, by a third-party service provider. You can usually identify such third party functionality by the use of a trademark not owned by MOA on or near the functionality. In that case, when you use the functionality, you become subject to the terms of use and privacy policy of this third party in addition to this Privacy Policy and the Terms of Use of our Site. In some cases, you may need to visit that party's website and locate the terms of use and privacy policy. For example, we may use a third party to provide you with the opportunity to chat with MOA representatives.

9. **Your Controls and Choices**

If you request to receive information from us, we presume that you have given us permission to communicate with you about that information, either by postal mail, e-mail, text message, social media, telephone or other form of communication. Further, if you choose to use e-mail, text messaging or telephone for communications about MOA, such as a current condition or past experience, we will presume again that you have given us permission to communicate with you about your communication.

We provide you the ability to exercise certain controls and choices regarding our collection, use and sharing of your information. Your controls and choices may include:

- You may correct, update and delete your registration account by contacting us at privacy@mallofamerica.com.
- You may change your choices for subscriptions, newsletters and alerts.
- You may unsubscribe from receiving offers and promotions for our products and services, or products and services that we think may be of interest to you.

You may exercise your controls and choices, or request access to your Personal Information, by visiting MOA's subscription and account management center, contacting privacy@mallofamerica.com, or following instructions provided in communications sent to you. Please be aware that, if you do not allow us to collect Personal Information from you, we may not be able to deliver certain products and services to you, and some of our services may not be able to take account of your interests and preferences. If you have questions regarding

the specific Personal Information about you that we process or retain, please contact privacy@mallofamerica.com.

10. **Data Security**

The security, integrity and confidentiality of your information are extremely important to us. We follow generally accepted industry standards to protect the personal information submitted to us, both during transmission and once we receive it. We have implemented what we believe to be reasonable precautions and safeguards to protect the security of data and information. For example, we may encrypt information using secure socket layer technology (SSL), whereby your information is converted into tiny bits of encrypted code that cannot be read by others during transmission. Our servers use this SSL technology to protect your information. However, MOA cannot guarantee against any loss, misuse, unauthorized disclosure, alteration or destruction of data or Personal Information, including credit card information that is provided to us. While MOA strives to protect your Personal Information, MOA cannot guarantee the security of any information you transmit to or from a Site or an App, by email or otherwise, and you provide such information at your own risk.

You acknowledge that: (a) there are security and privacy limitations in computer systems and on the Internet which are beyond the control of MOA; (b) the security, integrity, and privacy of any and all information and data exchanged between you and MOA through Site or Apps, including Personal Information, cannot be guaranteed; and (c) any such information and data may be viewed or tampered with by a third party while such information or data is being used, transmitted, processed, or stored.

11. **Changes to Privacy Policy**

From time to time, we may change this Privacy Policy, in whole or in part, without notice to you. You expressly waive any right to receive notice of any changes to this Privacy Policy. We will obtain your consent where required by applicable law. MOA encourages you to review this Privacy Policy regularly in your use of a Site or an App to ensure that you are aware of current practices. Any use of a Site or an App following the date on which MOA implements changes to this Privacy Policy shall constitute your acceptance of all such changes.

12. **Comments and Questions**

Please contact privacy@mallofamerica.com if you have a comment or question about this Privacy Policy.

Notice to California Residents: If you are a California resident, you may have certain additional rights. California Civil Code Section 1798.83 permits you to request information regarding the disclosure of your Personal Information by certain subsidiaries or affiliated entities to third parties for the third parties' direct marketing purposes. California Business and Professions Code Section 22581 permits registered users who are minors to request and obtain deletion of certain posted content. Visit our Your California Privacy Rights page for more information.

If you have questions or comments about this Privacy Policy, please email us at privacy@mallofamerica.com.

- FAQs
- Media
- Careers
- Partners
- Community

NEWSLETTER

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Mall of America
Nickelodeon Nick Jr.

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